PLAXEDES MUBAIWA
and
PATRICK MATEU
and
EDMORE KAUTEKO
and
JOEL MTETWA
versus
TIMSITE MINING (PRIVATE) LIMITED
and
TIME OF HOPE MINING SYNDICATE

HIGH COURT OF Zimbabwe
MAMBARA J
HARARE 18 and 25 June 2026

Opposed Application

Mr *T. Munyari*, for the applicants
Mr *T. J. Madotsa*, with Mr *K. P. Shamu*, for 1st respondent

MAMBARA J:

[1] This is an application for rescission of a judgment granted by this court on 3 July 2025 under case number HCH2963/25. At the commencement of the hearing, counsel for the respondents abandoned the points *in limine* which had been raised in the papers. The matter accordingly fell to be determined on the merits under r 29 of the High Court Rules, 2021.

[2] The narrow question is not who, as between the disputants, ultimately holds the better mining rights over the contested area. Nor is it whether the Provincial Mining Director was correct or incorrect in the administrative correspondence that preceded the action proceedings. The question is whether the order in HCH2963/25 was erroneously sought or erroneously granted in the absence of parties whose rights or interests were directly affected.

[3] If that question is answered in the affirmative, rescission follows as a matter of law. The authorities cited by the applicants are correct on that point. In *Austin Munyimi* v *Elizabeth Tauro* SC 41/13, the Supreme Court reaffirmed the availability of rescission where the requirements of the rule are met. In *Tiriboyi* v *Jani* and Another HH 117/04, the court explained that the purpose of the rule is to enable the court to revisit judgments given in error

so as to prevent injustice. In *Muvungani* v *New Ham Financial Services (Pvt) Ltd* HH 57/17 and *Banda* v *Pitluk* 1993 (2) ZLR 60 (H), the same principle was applied: once error within the contemplation of the rule is established, the court does not proceed to examine the merits of the underlying cause as though it were trying the main dispute afresh.

[4] The comparative authorities point in the same direction. In *Tshabalala and Another* v *Peer* 1979 (4) SA 27 (T) and *Nyingwa* v *Moolma*n NO 1993 (2) SA 508 (Tk), the South African courts emphasized that a judgment is "erroneously granted" where, at the time of its issue, the court was unaware of facts which, had they been known, would have precluded the order. In *Mutebwa* v *Mutebwa* 2001 (2) SA 193 (TkH), the same essential requirements were identified. Those cases are persuasive because the wording and rationale of the South African rule materially mirror the logic of our own.

[5] The material facts are largely uncontested. The record before me contains a syndicate resolution dated 4 October 2024 in terms of which the members of Time of Hope Mining Syndicate agreed that all members had to be signatories to correspondence, agreements, or any written documentation, and that no single member could enter into commitments without the written consent of the others. The same record also contains an earlier resolution dated 14 June 2021 relied upon by Reginald Ngulube as authority to represent the syndicate in civil matters.

[6] Those two documents did not exist in a vacuum. The papers also show that disputes over Reginald Ngulube's authority had already spilled into litigation and official correspondence before the order in HCH2963/25 was obtained. The record further contains material demonstrating that the authority issue had become contentious even within the syndicate itself.

[7] On 18 June 2025, this court, per Zhou J, granted a spoliation order in HCH2666/25 restoring possession of Kimberly F mining location to Time of Hope Mining Syndicate and the individual occupiers cited with it, including the present 2nd to 4th applicants. That order had not been set aside, suspended, or displaced by appeal when the later action was initiated.

[8] Very shortly thereafter, summons commencing action was issued at the instance of the 1st respondent in HCH2963/25. The sheriff's return reflects service on 24 June 2025 upon Reginald Ngulube, described as a responsible person or employee at the defendant's place of

business. A consent to judgment signed by Reginald Ngulube followed almost immediately, and on 3 July 2025 KATIYO J granted the order declaring Timsite Mining (Private) Limited the rightful and legal occupier of Hospital L and evicting the defendant and all those claiming occupation through it.

[9] Those who stood to be affected by that order were plainly not confined to the named defendant in the abstract. The order expressly reached not only the syndicate but also "all those claiming occupation through it." The present 2nd to 4th applicants fall squarely within that description. They were not strangers to the occupation. They were persons whose possession had already been judicially restored days earlier by way of the spoliation order.

[10] The applicants submit that the 1st respondent and Reginald Ngulube stage-managed the action so that it would travel by lightning speed to the unopposed roll. The 1st respondent denies fraud and says the internal acrimony within the syndicate is of no concern to it. It further argues, relying on *Callander Enterprise (Pvt) Ltd* v *Econet Wireless (Pvt) Ltd* HH 232/18, *Mahlaba* v *Matinginde Holdings (Pvt) Ltd* HH 193/18, and *PTC Pension Fund* v *Standard Chartered Merchant Bank Zimbabwe Ltd & Another* 1993 (1) ZLR 55 (H), that the 2nd to 4th applicants have no cause of action because any rights they claim arise only from contract with the 2nd respondent.

[11] I do not agree. The applicants are not suing to enforce the mining contract against the 1st respondent. They invoke r 29 as persons directly affected by a judgment granted in their absence. That is a self-standing procedural and substantive basis for relief. The order in HCH2963/25 was framed to evict the defendant and all those claiming through it. Once that is so, any person whose occupation is directly threatened by such wording has standing to say: the order was granted in my absence; my rights or interests are affected; I seek rescission. The privity authorities therefore do not answer the present case.

[12] Nor does the 1st respondent's invocation of the *rei vindicatio*, founded upon *Savanhu* v *Hwange Colliery Co Ltd* SC 8/15, dispose of the matter. The vindicatory merits belong, if anything, to the action in HCH2963/25 once properly defended. A rescission court does not decide title merely because title was asserted in the earlier proceedings. That much follows from *Banda* v *Pitluk* 1993 (2) ZLR 60 (H) and *Tshabalala and Another* v *Peer* 1979 (4) SA 27 (T).

[13] The 1st respondent also argued that fraud must be distinctly pleaded and proved, citing *Zimasco (Pvt) Ltd* v *Tsvangirayi & Another* SC 12/10, *Zhangare* v *Chionza* HH 136/23, and the authorities on onus referenced in its heads. That statement of principle is, in the abstract, uncontroversial. But this application does not stand or fall only on whether final fraud has already been proved to the standard required for a definitive finding of deceit. Even if I leave the allegation of fraud at large, the applicants still succeed if they establish that the order was erroneously sought or erroneously granted in their absence.

[14] In my view, they have done so.

[15] First, there existed at the time of the grant a live, serious, and objectively material dispute over Reginald Ngulube's authority to bind the syndicate in contentious civil matters affecting mining rights and occupation. The later 2024 resolution requiring all members to sign documents is irreconcilable, at least on its face, with any notion that Reginald Ngulube could, by himself and without consultation, consent to a final order stripping the syndicate and those holding through it of occupation. Even if the earlier 2021 resolution conferred some representative authority, the later and more specific 2024 resolution, together with the extant disputes already known to the 1st respondent, made the position manifestly contentious.

[16] Second, the action in HCH2963/25 was launched against a background in which this court had only just granted a spoliation order restoring possession to the very persons now affected. The mandament *van spolie* exists to prevent self-help and to preserve or restore possession until rights are lawfully determined. That principle has been settled since Nino Bonino v De Lange 1906 TS 120 and was reaffirmed in Administrator, Cape, and *Another* v *Ntshwaqela and Others* 1990 (1) SA 705 (A). A litigant who seeks final eviction relief immediately after such an order, while suppressing the surrounding controversy and relying on an internally contested consent, treads on procedurally dangerous ground.

[17] Third, the court that granted the order in HCH2963/25 was not informed, at least not on the record now before me, of the full background against which the supposed consent was tendered. Had the court been told that Reginald Ngulube's authority was already hotly disputed; that another syndicate member had later distanced himself from the consent

process; that a recent resolution insisted on collective signature; that the 2nd to 4th applicants had been judicially restored to occupation under a spoliation order; and that the order sought would directly affect uncited occupiers, I am satisfied that the matter would not have proceeded as an unopposed consent matter.

[18] That is the very kind of circumstance contemplated in *Nyingwa* v *Moolman* NO 1993 (2) SA 508 (Tk) and in the Zimbabwean line of authority culminating, in the submissions before me, in *Kaseplan Grant Industries (Pvt) Ltd* v *Teviot Trust (Pvt) Ltd and Another* ZWHHC 449/23, namely, a situation where the granting court was unaware of facts which would have precluded the order.

[19] Fourth, the 1st respondent's answer that the internal rift of the syndicate is irrelevant to third parties cannot be accepted on these facts. Ordinarily, outsiders are not expected to referee corporate or associational quarrels. But where a litigant knowingly chooses one rival faction, procures service through that faction alone, and obtains a dispositive consent order while aware that the signatory's authority is disputed, the internal dispute becomes legally material. The authorities cited by the applicants on "blanket authority," including *Beach Consultancy (Pvt) Ltd* v *Makonya & Another* HH 696/21 and *Jockstar Investments (Pvt) Ltd* v *Muzirwa* HH 173/24, correctly caution against treating undifferentiated authority as a perpetual licence to bind an entity in future litigation regardless of the nature of the dispute and without informed collective approval.

[20] I accordingly reject the submission that the applicants have "no cause of action." Their cause of action is that they are affected parties within the meaning of r 29, and that the order sought against the syndicate and those claiming through it was obtained in circumstances where their absence, and the non-disclosure of the live authority dispute, mattered decisively.

[21] I also reject the submission that the present application is an impermissible collateral attack on the Provincial Mining Director's determination. This rescission application does not decide the boundary dispute or the administrative correctness of ministerial records. It decides only whether the July 2025 court order may stand as an order regularly and properly obtained.

[22] On the issue of non-joinder, now abandoned *in limine* in oral argument, I add this. Even on the papers, the objection could not have carried the day in light of r 32(11) of the High

Court Rules, 2021 and the tenor of *Jockstar Investments (Pvt) Ltd* v *Muzirwa* HH 173/24. In any event, the central point here is not to undo an administrative decision of the Provincial Mining Director but to set aside a court order granted in procedurally defective circumstances.

[23] The applicants placed considerable emphasis on fraud. There is much in the record that is troubling. *Munongowarwa* v *Madimbira & Another* HH 223/17, *Mudzingwa* v *Mudzingwa* 1994 (4) SA 17 (ZS), *Viljoen* v *Federated Trust Ltd* 1971 (1) SA 750 (O), and *Swadif (Pty) Ltd* v *Dyke* NO 1978 (1) SA 928 (A) all support the proposition that a judgment procured by fraud cannot be permitted to stand. The broader common-law position is consistent. In *Lazarus Estates Ltd* v *Beasley* [1956] 1 QB 702 (CA) it was said, memorably, that no court will allow itself to be used as an instrument of fraud. In *Takhar* v *Gracefield Developments Ltd* [2019] UKSC 13, the United Kingdom Supreme Court reaffirmed the availability of setting aside a judgment procured by fraudulent conduct.

[24] I do not, however, find it necessary to make a final and definitive finding of fraud against the respondents or against counsel. The application succeeds on the narrower and surer ground that the order was erroneously sought and erroneously granted in the absence of parties affected thereby, because material facts bearing directly on authority, occupation, and the propriety of the unopposed route were not before the granting court.

[25] The respondent's own authorities on fraud, onus, and bald allegations do not therefore rescue the order. They would matter more centrally if the applicants' only route to rescission were a fully proved fraud case. That is not this matter.

[26] There is another reason why rescission is plainly justified. The papers reveal contradictory material attributed to Douglas Ngulube. In one set of proceedings he appears to support the withdrawal and Reginald's accredited role; in later material he distances himself from the consent process and attacks the authenticity or provenance of documents relied upon against the applicants. I need not determine where the truth finally lies. The contradiction itself demonstrates beyond argument that this was not a matter fit for resolution on consent and on the unopposed roll.

[27] To leave the order standing would be to permit final substantive consequences to flow from a process that bypassed persons judicially restored to occupation only days earlier, ignored an evident authority contest, and treated an internally disputed representative as though his consent resolved everything. That would be inimical to both audi alteram partem and the policy of the law against self-help.

[28] The proper course is rescission, leaving the parties to ventilate the actual mining-rights dispute, and any related authority questions, in properly constituted proceedings where everyone directly affected can be heard.

[29] As to costs, the applicants have substantially succeeded. The 1st respondent chose to oppose rescission and persisted in defending the July 2025 order. I am not persuaded that punitive costs are appropriate, because I have deliberately refrained from making a final finding of fraud. Ordinary costs against the 1st respondent will meet the justice of the case.

[30] In the result, it is ordered that:

1. The judgment granted on 3 July 2025 under case number HCH2963/25 be and is hereby rescinded and set aside.

2. The matter under HCH2963/25 shall proceed in terms of the Rules.

3. The 1st respondent shall pay the costs of this application.

MAMBARA J……

Gumbo & Associate, applicant's legal practitioners
Madotsa & Partners, 1st respondent's legal practitioners
Mapaya & Partners, 2nd respondent's legal practitioners